Harris County District Court

Cause No. 2025-CV-0028

Craig Gonzales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-25-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way when changing lanes, and failed to maintain a safe distance from surrounding vehicles. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a pre-existing condition, a subsequent event, or the acts or omissions of presons other than Defendant, for which Defendant is not liable.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring expenses that were unnecessary or unreasonable in amount.

Defendant reserves the right to amend this answer as dicsovery proceeds.